

Prison Act, 2022

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Prisons Act, 2079".

(2) This Act shall commence on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the Supreme Court, High Court or District Court and the word also includes a court, other judicial body or official authorized by law to conduct proceedings and adjudicate certain types of criminal cases.

(b) "Prison" means a house, room or any other place of similar nature built or used for imprisoning or detaining a detainee, and the word also includes the precincts of such house, room or place and its boundary wall.

(c) "Prison Office" means the administrative office that manages and operates the prison.

(d) "Prison Administrator" means an officer level employee assigned as the head of the Prison Office for the management and operation of the prison pursuant to this Act.

(e) "Convicted Prisoner" means a person who is in prison having been sentenced by a court judgment.

(f) "Open Prison" means any place designated by the Government of Nepal where a convicted prisoner may go outside the place where they are kept at specified times to perform some work.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in this Act or in the rules made under this Act.

(h) "Undertrial Prisoner" means a person who is in judicial custody for the purpose of investigation of an offense or awaiting trial, and the word also includes a person who is in detention pursuant to prevailing law.

(i) "Minor" means a child who has not completed the age of eighteen years.

(j) "Provincial Prison" means a prison operated and managed under the provincial government.

(k) "Detainee" means a convicted prisoner or an undertrial prisoner.

(l) "Detainee Record Book" means the detainee record register maintained pursuant to Section 13.

(m) "Ministry" means the Ministry of Home Affairs of the Government of Nepal.

(n) "Department" means the Department of Prison Management under the Ministry.

(o) "Special Prison" means a special prison as referred to in Section 40.

(p) "Special Security Cell" means a special type of secure place built within a prison to keep detainees of a sensitive nature from a security perspective.

(q) "Federal Prison" means a prison operated and managed under the Government of Nepal. Chapter-2

Department and Prisons

3.

Department: (1) There shall be one Department of Prison Management under the Ministry. (2) The Government of Nepal shall assign a first class gazetted officer of the Federal Civil Service as the Director General of the Department, and that person shall work as the head of the Department. (3) There shall be the required number of employees in the Department. 4. Duties, Functions and Powers of the Department: In

addition to the duties, functions and powers mentioned elsewhere in prevailing law and this Act, the duties, functions and powers of the Department shall be as follows:- (a) To formulate necessary policies relating to prison management and submit them to the Ministry, (b) To determine necessary standards regarding matters including services and facilities for detainees, (c) To develop prisons as reform homes and formulate and implement necessary plans to engage detainees in productive work along with psycho-social counseling, (d) To determine the basis and standards for the transfer of detainees, (e) To carry out necessary structural and administrative work to make prisons gender-friendly and disability-friendly, (f) To carry out work related to remission of sentence pursuant to prevailing law, (g) To monitor, inspect and supervise prisons. 5. Establishment of Prisons: (1) The Government of Nepal may establish prisons as necessary. (2) The Government of Nepal shall designate a prison established pursuant to sub-section (1) as a Federal Prison or a Provincial Prison based on factors including security sensitivity, physical infrastructure, management capacity, administrative convenience and geographical location. (3) Notwithstanding anything contained in sub-section (2), prisons established as Open Prisons or Special Prisons shall automatically remain as Federal Prisons. (4) The Government of Nepal shall designate the prisons existing at the time of commencement of this Act as Federal Prisons or Provincial Prisons based on the grounds mentioned in sub-section (1). 6. Management of Prisons: (1) The Government of Nepal shall manage Federal Prisons established or designated pursuant to Section 5, and the concerned Provincial Government shall manage Provincial Prisons. (2) Until the Government of Nepal designates the prisons existing at the time of commencement of this Act as Federal Prisons or Provincial Prisons pursuant to sub-section (4) of Section 5, the Government of Nepal shall manage such prisons. (3) The Ministry shall carry out work related to the management of the Prison Administrator and other employees in Federal Prisons. (4) The Provincial Government shall carry out work related to the management of the Prison Administrator and other employees in Provincial Prisons.

Provided that until employees are arranged by the Provincial Government, the Government of Nepal shall assign employees of the Federal Civil Service for the management of Provincial Prisons.

(5) The concerned Chief District Officer shall be responsible for arranging oversight, coordination and security of prisons within their district. 7. Duties, Functions and Powers of the Prison Administrator: (1) In addition to the duties, functions and powers pursuant to this Act and other prevailing laws, the duties, functions and powers of the Prison Administrator shall be as follows:-

- (a) To carry out or cause to be carried out the internal management of the prison,
- (b) To keep or cause to be kept securely the case files, Detainee Record Books, documents and goods entrusted to them pursuant to prevailing law,
- (c) To carry out or cause to be carried out necessary work for the proper management of detainees in the prison, and while managing thus, to pay attention to the special needs arising from factors such as the age, gender, or disability of any detainee,
- (d) To maintain tight security arrangements in the prison, to inspect them from time to time, and to always keep the prison under their supervision and surveillance,
- (e) To give necessary instructions to security personnel and other employees deployed in the prison for managing the prison,
- (f) To make necessary arrangements to provide free legal aid to detainees as required,
- (g) To arrange or cause to be arranged necessary moral reform and psycho-social counseling for detainees,
- (h) To follow or cause to be followed instructions given by the Ministry, Department, Provincial Government and Chief District Officer regarding prison management.

(2) The Prison Administrator shall also be accountable to the Chief District Officer of the concerned district.

- (3) The Prison Administrator shall reside in the government accommodation assigned to them and shall generally obtain permission from the Chief District Officer before leaving the prison and going elsewhere.
- (4) The Prison Administrator may delegate some of the powers conferred upon them pursuant to this Act to subordinate employees as necessary. Provided that the power to impose a fine pursuant to Section 52 shall not be delegated.
- (5) The Prison Administrator shall prepare an annual report as prescribed and submit it to the concerned Ministry of the Provincial Government and the Department. 8.

Chapter-3

Placing Detainees in Prison

9. Undertrial Prisoner Warrant or Convicted Prisoner Warrant to be Issued: (1) Before imprisoning or detaining any person pursuant to prevailing law, an undertrial prisoner warrant or convicted prisoner warrant shall be issued, and no undertrial or convicted prisoner shall be kept as a detainee in a prison without such a warrant.

(2) If a person is required to be detained by a court order for investigation or trial of an offense pursuant to sub-section (1), such person shall be sent to the prison with an undertrial prisoner warrant containing the following details:-

- (a) The matter for which the order to detain for investigation or trial on what accusation,
- (b) Brief description of the offense,
- (c) Period of detention,
- (d) The court ordering the detention.

(3) If a person who has been sentenced to imprisonment by a court judgment is required to be imprisoned, such person shall be sent to the prison with a convicted prisoner warrant containing the following details:-

- (a) Brief description of under which law the offense was proven and what sentence is to be awarded,
- (b) The court that passed the judgment and the date of judgment,
- (c) Details of the sentence imposed for the offense according to the judgment,
- (d) The remaining period to be spent in imprisonment,
- (e) Details if in judicial custody.

(4) If a person is required to be imprisoned for non-payment of a fine imposed by a court judgment, such person shall be sent to the prison with a convicted prisoner warrant containing the following details:-

- (a) Details of under which law how much fine was imposed,
- (b) The court that passed the judgment and the date of judgment,
- (c) The amount of fine to be adjusted per day of imprisonment,
- (d) The period to be spent in imprisonment if the fine is not paid.

(5) In addition to the matters mentioned in the convicted prisoner warrant pursuant to sub-section (3) or (4), the court shall send a letter to the concerned Prison Office containing the name, surname, domicile, age, complexion, physical description of the person to be imprisoned, the name, surname, address, age of their father, mother and husband or wife, and if the person is a Nepali citizen, the citizenship number, issuing district and date, and if a foreign citizen, the passport number, details of visa, country issuing the passport, date of issue.

(6) If any detainee does not receive the warrant given to them pursuant to sub-section (2), (3) or (4), the employee responsible for delivering the warrant shall have an employee of the concerned local level or any office under it as a witness, get their signature on that warrant, and keep it.

10. Searching: (1) When a person is sent to be kept in a prison pursuant to Section 9, before allowing them to

enter the prison, their body shall be searched by security personnel deployed for security purposes. While searching thus, in the case of a woman, the search shall be conducted by a female security personnel.

(2) If, during the search pursuant to sub-section (1), there are information technology devices such as cameras, mobile phones, SIM cards, personal computers, laptops, iPads, or valuable items such as cash, gold, silver, jewelry with that person, and if their spouse or a member of their immediate family is immediately present, a receipt shall be obtained in their presence and handed over to that person or family member, and if such person is not immediately available, the Prison Administrator shall keep a record of such items in the register book and keep such goods securely in the prison.

(3) If, during the search pursuant to sub-section (1), any weapon, contraband, or any object prohibited by prevailing law is found with the person, they shall be allowed to enter the prison only after confiscating such objects, and a letter shall be sent to the concerned authority to initiate necessary action regarding such objects.

(4) Notwithstanding anything contained elsewhere in this section, except for the items mentioned in sub-section (2) or (3), a detainee shall be permitted to keep with them daily use personal items allowed to be taken inside the prison for their use. 11. Medical Examination: (1) After searching a person sent to be kept in a prison pursuant to Section 9 as per Section 10, the Prison Administrator shall have their health examined by a health worker.

(2) While conducting the health examination pursuant to sub-section (1), a record shall be kept of details regarding whether there are any wounds, injuries, bruises on their body and other health conditions. 12. Accepting as Detainee: After a person sent to be imprisoned or detained by an order or judgment of a court after fulfilling the formalities according to this Act and prevailing law is medically examined pursuant to Section 11, the Prison Office shall accept them and make arrangements to keep them imprisoned or detained. 13.

Detainee Record Book: (1) The Prison Administrator shall maintain a Detainee Record Book to keep records of detainees in each prison. (2) The following details of the detainee and related to the detainee shall be mentioned in the Detainee Record Book:- (a) Name, surname, address, (b) If a Nepali citizen, citizenship number, date and district of citizenship issuance and if a national identity card has been taken, its number and date of issue, (c) If a foreign citizen, the passport number, details of visa, the country issuing the passport, date of issue, and if a foreign citizen without a passport, details revealing their identity, (d) Name, surname and address of father, mother, husband or wife, (e) Age, gender and marital status, (f) Health condition (including reproductive health in the case of women), (g) Name, address and contact number of contact person, (h) Name of the case or offense, brief description or reference of the case, (i) Name and address of the court ordering detention or imposing the sentence, (j) Date of order or judgment, (k) Period to be spent in detention or imprisonment, (l) Details of fine and compensation if imposed, (m) Date of expiry of the sentence period, (n) Details of any valuable items in possession. (3) In addition to the details pursuant to sub-section (2), the Prison Administrator shall keep a record of the photograph of the detainee and the details of thumbprint (biometric) as prescribed. (4) While maintaining the Detainee Record Book pursuant to this section, a separate register shall be maintained, and an electronic record of such details shall also be kept. (5) The details of the electronic record pursuant to sub-section (4) shall be sent to the Department. 14.

Not to Detain or Imprison Beyond Prescribed Period: (1) A detainee who has been detained or imprisoned for a specified period shall be immediately released from detention or imprisonment after the expiry of that period, and a detainee who has been ordered not to remain in prison by an authorized official pursuant to prevailing law shall be immediately released. (2) The Prison Administrator shall record in the Detainee Record Book the fact of having released a detainee from detention or imprisonment pursuant to sub-section

(1). (3) If it appears that any detainee has remained in detention or imprisonment for a longer period than prescribed by prevailing law due to the negligence of the Prison Administrator or any employee, or if it appears that they have not done work that should be done or have done work that should not be done pursuant to this Act, departmental action shall be taken against such employee. (4) If a detainee has remained in detention or imprisonment beyond the period under sub-section (1), the concerned detainee or their family or relatives may submit an application to the concerned Chief District Officer stating the facts. (5) Upon submission of an application pursuant to sub-section (4), the Chief District Officer shall have such detainee immediately released from imprisonment or detention and also have compensation as prescribed paid to them. (6) For a detainee who has served the full sentence period but has no family or relatives, or has them but they are not in contact, or who cannot return to the family due to physical or mental problems even after release, the Prison Administrator may coordinate with the Chief District Officer and entrust such person to a government institution that cares for such persons or to a social organization established for that purpose pursuant to prevailing law. Chapter-4 Prison Infrastructure 15. Separate Accommodation Arrangements: (1) The Prison Administrator shall arrange a suitable place for accommodation for detainees. (2) In each prison, separate buildings shall be arranged for the accommodation of female and male detainees.

Provided that until such buildings are arranged, separate access arrangements shall be made for female and male detainees, and they shall be kept in separate blocks of the building. (3) Separate toilets and bathrooms shall be arranged for female and male detainees in the prison. (4) Subject to sub-sections (2) and (3), the following detainees shall be kept in rooms separate from other detainees:- (a) Undertrial prisoners, (b) Third gender, (c) Those with communicable diseases, (d) Those with unstable mental conditions, (e) Those sentenced for serious and heinous offenses pursuant to prevailing law, (f) Those of a nature that require keeping in a Special Security Cell pursuant to Section 18. (5) Arrangements as prescribed shall be made for the accommodation, toilet, and bathroom of detainees with disabilities or third gender detainees. 16. Arrangement of Hospital or Health Post: (1) In each prison housing more than five hundred detainees, there shall be a hospital with beds as prescribed, and in prisons housing fewer than that, a health post shall be arranged. (2) Until a hospital or health post pursuant to sub-section (1) is arranged, the Prison Administrator shall coordinate with a government hospital or health post near the location of the Prison Office to arrange health examinations and treatment for detainees in the prison. 17. Arrangement of Meeting Room: (1) The Prison Administrator shall arrange a necessary room for meetings with family members, close relatives, the legal practitioner appointed by the detainee, or relatives who come to meet the detainee. (2) If a detainee's minor son or daughter comes to meet them, a separate room shall be arranged in the prison for the meeting. (3) A person coming to the prison for a meeting pursuant to sub-section (1) shall comply with the security arrangements and conditions as prescribed before entering the prison. (4) The meeting room built for meeting detainees in the prison shall be senior citizen-friendly, disability-friendly, and gender-friendly. (5) If any foreign national is a detainee, and the diplomatic mission of the concerned country requests through the Ministry of Foreign Affairs that diplomatic staff of that country wish to meet them, meeting arrangements pursuant to this section shall be made for such detainee. 18.

Arrangement of Special Security Cell: (1) A Special Security Cell shall be arranged to keep detainees of a sensitive nature from a security perspective with special security within the prison. (2) The Prison Administrator may keep the following types of detainees in the cell pursuant to sub-section (1):- (a) Those ordered to be kept in a Special Security Cell by the court or the Government of Nepal, (b) Those arrested after escaping from prison, (c) Those who have attempted to escape by rioting inside the prison, (d) Those who have engaged in rioting inside the prison, harassing detainees, committing sexual misconduct or theft, (e) Those who have escaped during medical treatment, production in court, or deployment for work, (f) Those

who have physically attacked other detainees inside the prison, (g) Those who have been involved in criminal activities outside the prison while inside the prison. (3) The period for keeping a detainee in a Special Security Cell pursuant to this section shall be as determined by the Prison Administrator. (4) Notwithstanding anything contained in sub-section (3), a detainee under clause (a) of sub-section (1) shall be kept in the Special Security Cell for the period mentioned in such order. (5) The Prison Administrator shall provide information about a detainee being kept in a Special Security Cell pursuant to this section to the Department and Chief District Officer in the case of a Federal Prison, and to the Ministry looking after prisons of the Provincial Government, the Department, and the Chief District Officer in the case of a Provincial Prison. (6) While providing information pursuant to sub-section (5), the reason for keeping the detainee in the Special Security Cell and the period for keeping them in such cell shall also be stated. 19. Other Facilities and Infrastructure for Detainees: (1) The concerned prison shall, within the available means and resources, arrange necessary infrastructure such as drinking water and toilets, exercise area, library for detainees within the prison, and also arrange facilities such as sports grounds and various sports equipment, radio and television, and other amenities for the recreation of detainees. (2) While arranging structures and services within the prison, it shall be done in such a way as to guarantee fundamental human rights such as sanitation, health, and security. (3) The Prison Administrator shall make arrangements to provide necessary items related to reproductive health including sanitary pads free of cost to female detainees in the prison. 20.

22. Provisions Regarding Health Examination: (1) The Prison Office shall have all detainees undergo free health examination and treatment by a government doctor regularly at least once every two months and as necessary.

(2) If, during the health examination pursuant to sub-section (1), it appears necessary to keep a detainee in a health institution for treatment, they shall be treated by keeping them in the health institution within the prison.

(3) The Prison Office shall provide medicines required by detainees for regular consumption.

(4) If there is no health institution in the concerned prison for providing health treatment to a detainee, or if it is not suitable according to the nature of the treatment, treatment may be provided at another health institution affiliated with the prison, and if treatment at such health institution is also not suitable, treatment may be provided at another suitable health institution upon the recommendation of the concerned doctor.

(5) Notwithstanding anything contained elsewhere in this section, if a detainee wishes to receive treatment from another doctor or health institution at their own expense, the Prison Administrator may permit them to receive such treatment after completing the prescribed procedure.

(6) A detainee placed in a health institution during treatment pursuant to this section shall be deemed to be within the prison, and that period shall be counted towards the period of imprisonment served.

(7) If a detainee undergoing treatment pursuant to this section recovers, they shall be placed back in the prison, except when their sentence period has already been served or when they do not need to be kept in prison for other reasons.

(8) Medicines distributed free of cost by the Government of Nepal pursuant to prevailing law shall be distributed free of cost to the concerned detainees through the concerned hospital or health post. 23.

Protection of Reproductive Rights: The Prison Administrator shall make suitable arrangements as prescribed for the purpose of protecting the reproductive rights of detainees. 24.

Arrangement for Education: (1) The Prison Administrator shall make necessary arrangements for the education of detainees. (2) If the number of detainees exceeds the prescribed number, the Prison Administrator shall, as necessary, make necessary arrangements for basic education, secondary education, open education, technical and vocational education, or distance education. (3) The Prison Administrator shall make necessary arrangements for alternative education, non-formal education, or education of a similar

nature for illiterate detainees. (4) For the purpose of education pursuant to sub-section (3), the Prison Administrator may designate a teacher from among the detainees in the prison. (5) A teacher designated pursuant to sub-section (4) shall be given remuneration and facilities as determined for the concerned level. (6) The Prison Administrator shall make arrangements for a detainee who needs to take examinations for higher education to participate in such examinations. (7) The Prison Administrator may conduct programs such as moral education, yoga practice, and meditation with the aim of reforming the conduct of detainees or promoting positive thinking. (8) The Prison Administrator shall provide necessary study materials to detainees. 25. Operation of Skill-Based or Income-Generating Programs: (1) The Prison Administrator may operate various skill-based or income-generating programs within the prison premises to make detainees self-reliant or provide them with income-earning opportunities. (2) The Prison Administrator shall make necessary arrangements to provide market access to products produced from programs operated pursuant to sub-section (1). (3) From the income obtained from income-generating programs pursuant to sub-section (1), an amount as prescribed shall be provided to the concerned detainee based on their labor contribution. (4) Other arrangements regarding the operation of skill-based or income-generating programs pursuant to sub-section (1) shall be as prescribed. 26. Detainees May Be Employed: (1) If a factory is established within the prison premises with permission pursuant to prevailing law, detainees willing to work in such factory may be employed. (2) For work done by a detainee pursuant to sub-section (1), wages as prescribed shall be paid at a rate not less than the minimum remuneration determined by the Government of Nepal based on contribution. Provided that a detainee working part-time shall be paid wages as prescribed based on contribution. 27.

Detainee May Submit Application Through Prison: (1) If a detainee needs to submit a plaint, reply, appeal, or any other kind of application to any court or authority pursuant to prevailing law, they shall submit it within the prescribed period as per prevailing law, including the applicable fees, to the Prison Office where they are located. (2) If any plaint, reply, appeal, or any other kind of application is received pursuant to sub-section (1), the Prison Administrator shall, if it is within the time limit, have the detainee sign it, collect the applicable fees as per prevailing law, and send it promptly to the concerned authority. 28. Provisions Regarding Marriage Registration: (1) If a male and female detainee in prison, or a male or female not in prison wishes to marry a detainee in prison, they shall submit an application to the Prison Administrator for marriage registration. (2) Upon submission of an application pursuant to sub-section (1), the Prison Administrator shall send a letter to the concerned body for marriage registration. (3) If, after sending a letter pursuant to sub-section (2), the concerned body sends a letter to the Prison Office stating that the said marriage can be registered pursuant to prevailing law, the Prison Administrator shall permit the concerned detainee to go for marriage registration on the day of registration, accompanied by security personnel. 29. Transfer of Property in the Name of Detainee: Movable and immovable property in the name of a detainee in prison, other than that attached pursuant to prevailing law, may be transferred or partitioned by right pursuant to prevailing law with the consent of the detainee. 30. Producing Detainee in Court: (1) If it is necessary to obtain evidence or other necessary matters from a detainee in a case, or if a case in which the detainee is involved is to be heard, the concerned court shall send a letter as prescribed to the concerned Prison Office stating that such detainee should be produced. (2) Upon receipt of a letter pursuant to sub-section (1), the Prison Administrator shall produce the concerned detainee in court under the surveillance of security personnel. (3) Notwithstanding anything contained elsewhere in this section, if any matter needs to be ascertained from a detainee, or if an investigation needs to be conducted regarding another offense committed by them, the court may order the production of a detainee upon the request of the concerned investigating officer.

Upon such order, the Prison Administrator shall produce such detainee before the concerned officer.

(4) While producing a detainee in court pursuant to this section, they may be produced through audio-visual communication (video conference) in coordination with the court.

(5) Other arrangements regarding the production of detainees in court shall be as prescribed. 31. Detainee May Be Transferred: (1) A detainee may be transferred by the Provincial Government in circumstances as prescribed from one prison operated and managed by a Provincial Government to another prison within the concerned province.

(2) While transferring a detainee from one prison to another pursuant to sub-section (1), information thereof shall be given to the Department.

(3) Notwithstanding anything contained in sub-sections (1) and (2), the Department may transfer a detainee from one Provincial Prison to another Provincial Prison, or from a Provincial Prison to a Federal Prison, or from a Federal Prison to a Provincial Prison. Provided that detainees in an Open Prison or Special Prison may only be transferred to a prison of the same nature.

(4) While transferring a detainee pursuant to sub-section (1) or (3), coordination shall be made with the concerned Prison Office.

(5) While transferring a detainee pursuant to this section, it shall be done by safe and suitable means of transportation, adopting adequate security arrangements and other necessary measures.

(6) The Prison Administrator shall inform the contact person or other family members recorded in the detainee's record book about the transfer of the detainee pursuant to this section, and if the detainee's legal practitioner requests information, they shall also be informed.

(7) Other arrangements regarding the transfer of detainees shall be as prescribed. 32.

Management in Case of Death of a Detainee: (1) If a detainee dies, a government doctor shall issue a death certificate stating the cause of death. (2) If a detainee dies, after confirmation of death by the concerned doctor, the Prison Administrator shall give information as prescribed to the court by whose judgment or order the detainee was imprisoned, and to the family member or relative of the deceased. (3) While informing the family member or relative or contact person pursuant to sub-section (2), information may also be given by telephone or electronic means. (4) If it is not possible to inform pursuant to sub-section (2) or (3), or in the case of the death of a foreign detainee, a notice may be published in a national daily newspaper for the purpose of giving information thereof. (5) The dead body of a detainee who died pursuant to sub-section (1) shall be taken charge of by the deceased's family member or relative or contact person within fifteen days, excluding travel time, from the date of receiving information pursuant to sub-section (2), (3) or (4) or from the date of publication of the notice. (6) If the dead body of such detainee is not taken charge of by a family member or relative pursuant to sub-section (5), or if there is no relative to take charge, the Prison Administrator shall have the last rites performed according to tradition at government expense. (7) Notwithstanding anything contained elsewhere in this section, the dead body of a detainee under sub-section (6) may be made available to an educational institution for study and research as prescribed. (8) The Prison Administrator may provide funeral expenses as prescribed to the family or relative performing the last rites of the detainee who died pursuant to sub-section (1). Chapter-6 Arrangements for Special Protection 33. Minor May Be Kept with Mother: (1) If the mother of a minor below the age of five years is required to stay in prison, the Prison Administrator may permit such minor to stay in prison with their mother in the following circumstances:- (a) If the mother is divorced, (b) If the father of such minor does not exist or is also in prison, (c) If the court orders that such minor shall stay in prison with their mother, or (d) If the mother of such minor requests to keep them with her. (2) If a minor is to stay with their mother in prison pursuant to sub-section (1), the Prison Administrator shall arrange a suitable room for the mother and child to stay. 34.

Care or Nurturing of Minors in Prison: (1) If a detainee has a minor whom they are supposed to nurture and

there is no one else to nurture such minor, the Prison Office shall make arrangements as prescribed for the complete care, education, training and nurturing of such minor while the detainee is in detention or imprisonment. (2) Notwithstanding anything contained in sub-section (1), to make arrangements for the complete care, education, training and nurturing of such minor, the Prison Administrator may, with the consent of the concerned detainee and in coordination with the Chief District Officer, entrust it to a government institution working in child welfare or a social organization established for that purpose pursuant to prevailing law. (3) The Prison Administrator shall prepare an early childhood development plan for minors below the age of five years in the prison. (4) Other arrangements regarding preparing and implementing the plan pursuant to sub-section (3) shall be as prescribed. 35. Ration and Clothing for Dependent Minors of Detainees: The Prison Administrator shall arrange daily rations and seasonal clothing as prescribed for dependent minors of detainees. 36. Arrangement of Minor Record Register Book: (1) The Prison Administrator shall maintain a separate register book to keep records of minors born to female detainees or minors residing in prison as dependents of detainees in each prison. (2) The following details shall be mentioned in the book pursuant to sub-section (1):- (a) Name, surname and address of the minor, (b) Name, surname and address of the minor's father and mother, (c) Date of birth and gender of the minor, and (d) Other necessary details. (3) If the birth of a minor under sub-section (1) needs to be registered, the Prison Administrator shall recommend with details pursuant to sub-section (2) to the concerned authority. 37.

Provisions Regarding Pregnant or Postpartum Detainees: (1) The Prison Administrator shall make special arrangements as prescribed regarding suitable accommodation, nutritious food, regular health check-ups and medical treatment for pregnant or postpartum detainees. (2) If a pregnant detainee who has completed six months of pregnancy wishes to stay outside the prison and undergo health treatment, the Prison Administrator shall permit her to go outside the prison on the surety of a family member as prescribed, with a guarantee to return to prison on the day after the completion of ninety-two days from the date of delivery. (3) Notwithstanding anything contained in sub-section (2), a detainee in the following circumstances shall not be released on surety from prison:- (a) Those sentenced to life imprisonment or for a heinous offense pursuant to prevailing law, (b) Those detained on charges of an offense punishable by life imprisonment or a heinous offense, or (c) Those of a nature requiring placement in a Special Security Cell. (4) A pregnant detainee released on surety pursuant to sub-section (2) while outside the prison shall be deemed to be within the prison, and that period shall be counted towards the period of imprisonment served. Provided that if the detainee who went outside thus does not return to prison within the period under sub-section (2), except in circumstances beyond her control, the period spent outside prison shall not be considered as being inside the prison, and that period shall also be added to the period she is required to serve imprisonment. (5) If a pregnant detainee released on surety pursuant to sub-section (2) does not return to prison within the period under that sub-section, the Prison Administrator shall deploy security personnel to produce her in prison. 38. Protection of Other Detainees in Special Circumstances: The Prison Administrator shall pay special attention as prescribed regarding the diet, accommodation and health examination of the following detainees in prison: (a) Those with disabilities, (b) Mentally ill, (c) Those with serious diseases, and (d) Those who have reached the age of sixty-five. 39.

40. Management of Detainees in Special Prison: (1) Convicted prisoners who have been sentenced to imprisonment for the remainder of their natural life pursuant to prevailing law shall be kept in a Special Prison.

(2) Convicted prisoners sentenced to life imprisonment pursuant to prevailing law may be kept in a Special Prison based

- (3) If prison records or any file or document is destroyed, damaged, or torn,
- (4) If handcuffs are opened or broken without permission,
- (5) If any prohibited item or goods are brought, kept, or sent inside the prison,
- (6) If damage is caused by using any object or weapon from the factory or kitchen,
- (7) If CCTV, metal detectors, or other equipment installed in the prison are destroyed, or an attempt is made to do so.

(E) If the following offences are committed, imprisonment for up to two years or a fine of up to twenty thousand rupees or both:

- (1) If insulting or threatening language is used against any person,
- (2) If indecent or undisciplined acts are performed,
- (3) If any act or thing is done or caused to be done contrary to this Act or the rules made under this Act.

(F) If any person commits an offence of sexual abuse against any prisoner, in addition to the punishment under the prevailing law, imprisonment for up to two additional years or a fine of up to twenty thousand rupees or both shall be imposed.

(2) If any person causes a prisoner to escape or attempts to do so, imprisonment for up to three years or a fine of up to thirty thousand rupees or both shall be imposed.

(3) If any employee or security personnel knowingly or negligently allows an act under sub-section (1) or (2) to occur, such employee or security personnel shall also be liable to the same punishment as mentioned in that sub-section.

(4) If a prisoner released on bail or bond under sub-section (2) of section 37 fails to present themselves at the prison within that period, the person who took such bail or bond shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 50. Government to be plaintiff: (1) The case to be proceeded with and decided under section 49 shall have the Government of Nepal as plaintiff, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074.

(2) While conducting investigation and proceedings of cases under section 49, it shall be done on the basis of a report from the prison administrator or any employee of the prison office. 41.

Authority to hear cases: The authority to proceed with and decide cases under section 49 shall lie with the concerned District Court. 42. Power to impose fine: (1) If any person commits, attempts to commit, or abets any of the following acts, the prison administrator may impose a fine of up to ten thousand rupees: (a) Violation of the code of conduct under section 53, or (b) Bringing into or taking out of the prison any article other than those prohibited under this Act or prevailing law, contrary to this Act. (2) A person dissatisfied with the fine imposed under sub-section (1) may appeal to the concerned District Court within thirty-five days. Chapter-9 Miscellaneous 43. To formulate code of conduct: (1) The Department shall formulate and implement a code of conduct to be followed by employees of the prison office, security personnel, prisoners, and visitors, in order to maintain orderly administration of the prison, maintain discipline among prisoners, or manage prison security. (2) Compliance with the code of conduct under sub-section (1) shall be the duty of all employees, security personnel, prisoners, and concerned persons. (3) An employee or security personnel who violates the code of conduct under sub-section (1) shall, in addition to the fine under sub-section (1) of

section 52, also be liable to departmental action under prevailing law. 44. Facilities for special responsibilities: (1) For the internal management of the prison, watchmen, headmen, or assistant headmen may be appointed from among the prisoners. (2) When appointing watchmen, headmen, or assistant headmen under sub-section (1), as far as possible, a prisoner serving a sentence for an offence for which the sentence is not remitted under prevailing law shall not be appointed. (3) When appointing watchmen, headmen, or assistant headmen under sub-section (1), the appointment shall not be for a period exceeding one year, and a prisoner who has once been given the responsibility of watchman shall not be appointed to the same or another responsibility before one year has elapsed after completing such responsibility. (4) In respect of watchmen, headmen, or assistant headmen appointed under sub-section (1), or a teacher appointed under sub-section (4) of section 24, or a prisoner working in the factory under section 26, remission of sentence shall be as follows: (a) In the case of a watchman, six days per month, (b) In the case of a headman, five days per month, (c) In the case of an assistant headman, four days per month, (d) In the case of a teacher, six days per month, (e) In the case of a factory worker, six days per month. 45.

Right to make complaint or grievance: (1) The prison administrator shall make arrangements whereby a prisoner can make a complaint or grievance, individually or collectively, regarding any hardship suffered. (2) During an inspection under section 42, 43, or 44, a prisoner may make a complaint or grievance regarding any hardship suffered to the inspecting officer. (3) If a complaint or grievance is made under sub-section (1) or (2), the prison administrator shall promptly investigate the matter and take necessary action regarding such complaint or grievance. (4) The matter of a complaint or grievance made under sub-section (3) shall be forwarded by the inspecting officer to the concerned body or authority. (5) Regarding a complaint or grievance received under sub-section (4), the concerned body or authority shall take necessary action and also inform the inspecting officer thereof. 46. To be according to prevailing law: Matters provided for in this Act shall be according to this Act, and other matters shall be according to prevailing law. 47. Evaluation of implementation of Act: Within one year of the completion of five years from the commencement of this Act, and thereafter within one year after every five years, the Ministry shall evaluate the implementation of this Act and submit a report thereof to the concerned committee of both houses of the Federal Parliament. 48. Power to make rules: (1) The Government of Nepal may make necessary rules for the implementation of this Act. (2) Without prejudice to the generality of sub-section (1), such rules may provide for the following matters: (a) Regarding the duties, functions, and powers of the Department and the prison administrator, (b) Regarding the management of prisons, (c) Regarding the deployment and coordination of security personnel in prisons, (d) Regarding the daily use articles that a prisoner may bring into the prison, (e) Regarding the standards for facilities and infrastructure to be provided to prisoners and their construction and operation, (f) Regarding the ration and clothing to be provided to prisoners, (g) Regarding the engagement of prisoners in work within the prison, (h) Regarding the production of prisoners before the court, (i) Regarding the facilities to be provided to pregnant or postpartum prisoners and the procedures to be followed in that regard, (j) Regarding the release of prisoners who have become incapacitated due to serious illness, (k) Regarding the placement of prisoners in special prisons and open prisons, (l) Regarding the appointment of watchmen, headmen, and assistant headmen. 49. Repeal and saving: (1) The Prison Act, 2019 is hereby repealed. (2) All acts and proceedings done under the Prison Act, 2019 shall be deemed to have been done under this Act.